

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
CAROLYN HOLMAN and TIFFANY HOLMAN,

SUMMONS

Plaintiffs,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. JOSEPH MARQUEZ and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,
Defendants.

The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
January 11, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det. Joseph Marquez Shield 000530 of NARCB BX
c/o 1 Police Plaza, NY, NY 10038

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BRONX COUNTY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CAROLYN HOLMAN and TIFFANY HOLMAN,

Index No.:

Plaintiffs,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, Det. JOSEPH MARQUEZ and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,

Defendants.
-----X

Plaintiffs, by their attorney, **Jonathan L. Gleit, Esq.**, complaining of the

Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS

CAROLYN HOLMAN and TIFFANY HOLMAN

1. At the time of the commencement of this action, Plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN were and still are residents of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about October 21, 2011, Det. JOSEPH MARQUEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about October 21, 2011, at approximately 6 A.M., Det. JOSEPH MARQUEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about October 21, 2011, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about October 21, 2011, at approximately 6 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

9. That on or about October 21, 2011 at approximately 6 A.M., at 4647 Park Avenue, Bronx, New York, the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN were improperly arrested and confined without warrant, privilege, proper authority or

justification, having no reason in law or in fact to arrest or confine CAROLYN HOLMAN and TIFFANY HOLMAN.

10. That the defendants, their agents, servants and/or employees arrested the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN without any basis in law or fact and without reasonable, probable or just cause or justification.

11. That the defendants, their agents, servants and/or employees arrested the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

12. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN and took their property without any basis in law or fact, thereby causing freight, shock, emotional distress and physical consequences.

13. That the defendants Det. JOSEPH MARQUEZ, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiffs thereby causing them to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

14. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN and threaten and deny their freedom after they knew, or should have known, they were innocent of all charges being alleged against them.

15. That all criminal charges brought against plaintiffs, which were brought under docket numbers 2011BX057460 and 2011BX057462, respectively, in the Criminal Court of the City of New York, Bronx County regarding the incidents of October 21, 2011, were dismissed by Hon. William Mogulescu, an Acting Justice of the Supreme Court on December 15, 2011, and the criminal proceedings were terminated in plaintiffs' favor.

16. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

17. As a result of the malicious prosecution, Plaintiffs were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of unjust criminal prosecutions, and was otherwise damaged and injured. The Plaintiffs made court appearances to defend their liberty against these unjust charges over a period of approximately 55 days.

18. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent persons such as the plaintiffs herein, almost

exclusively persons of a racial minority, without probable cause and unreasonable search procedures and failing to reprimand officers including those named herein after repeatedly engaging in such practices, thereby encouraging and implicitly condoning said practices, and in setting 'productivity goals' resulting in the arrest of innocent persons, said practices being regularly engaged in and evidenced by the existence of a multitude of similar civil rights actions having been brought against the CITY OF NEW YORK and voluminous complaints made to the Civilian Complaint Review Board which are a matter of public policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances. Said policy and procedure of having productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that narcotics officers were expected to make certain arrest goals. Said productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when

individualized reasonable or probable cause does not exist. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by statements repeatedly made by defendants, to wit, in sum and substance, "it's a drug raid, we have to take everyone" and has occurred to such individuals such as ADEUNA CABRAL, an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M.; and SAMUEL ALLEN on February 3, 2010 inside 1371 College Avenue, Bronx, New York ; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York; TREENA WILSON, ERIN OLIVER, ERIC OLIVER and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30 A.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and

CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNAY CAMPBEL on May 16, 2010 at 2260 Crotona Avenue; and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments.

19. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of their person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

20. That no negligence or actions on the part of the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN contributed to the occurrences alleged herein in any manner whatsoever.

21. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

22. That as a result of the foregoing, the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS

CAROLYN HOLMAN and TIFFANY HOLMAN

23. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 22 as though more fully set forth herein.

24. That on or about January 7, 2012, and within 90 days after the claim herein sued upon, plaintiff caused Notices of Claim, sworn to by or on behalf of the claimants CAROLYN HOLMAN and TIFFANY HOLMAN to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the

time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, GML 50-h hearings were held for each claimant on July 18, 2012, and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

25. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

26. That on or about October 21, 2011 at approximately 6 A.M., at 4647 Park Avenue, Bronx, New York, the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN were improperly arrested and confined without warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest CAROLYN HOLMAN and TIFFANY HOLMAN.

27. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN Due Process under Law.

28. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants

and / or employees, NEW YORK CITY POLICE DEPARTMENT, Det. JOSEPH MARQUEZ, and OFFICER[S] JOHN AND/OR JAMES DOE were acts of

discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

29. That the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN, being aware of their unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, Det. JOSEPH MARQUEZ and OFFICER[S] JOHN AND/OR JAMES DOE.

30. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

31. That as a result of the foregoing, the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS
CAROLYN HOLMAN and TIFFANY HOLMAN

32. That plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 31 as though more fully set forth herein.

33. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

34. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrest of individuals, in the use of force search procedures carried out in public and within the view of the general public and in the use of arrest quotas or other incentives or disincentives resulting in unlawful arrests.

35. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiffs were made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will

be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiffs and for the purchase of drugs and medicines, and that plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocation and avocations; all to the plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

36. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS

CAROLYN HOLMAN and TIFFANY HOLMAN

37. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 36 as though more fully set forth herein.

38. That the defendants, their agents, servants and/or employees prosecuted criminal actions against the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN without any basis in law or fact.

39. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN due to racism and prejudice and without any basis in law or fact.

40. That the defendants Det. JOSEPH MARQUEZ, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the

prosecutor of the criminal action against plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN thereby causing them to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

41. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN and threaten and deny their freedom after they knew, or should have known, they was innocent of all charges being alleged against them.

42. That all criminal charges brought against plaintiffs, which were brought under docket numbers 2011BX057460 and 2011BX057462, respectively, in the Criminal Court of the City of New York, Bronx County regarding the incidents of October 21, 2011, were dismissed by Hon. William Mogulescu, an Acting Justice of the Supreme Court on December 15, 2011, and the criminal proceedings were terminated in plaintiffs' favor.

43. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

44. As a result of the malicious prosecution, Plaintiffs were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiffs made court

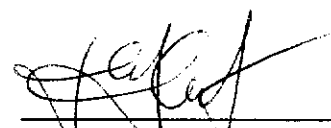
appearances to defend their liberty against these unjust charges over a period of approximately 55 days.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

46. That as a result of the foregoing, the Plaintiffs CAROLYN HOLMAN and TIFFANY HOLMAN were damaged in sums which exceed the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
January 11, 2013


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Joseph Marquez Shield 000530 of NARCB BX
c/o 1 Police Plaza, NY, NY 10038

PLAINTIFF'S VERIFICATION

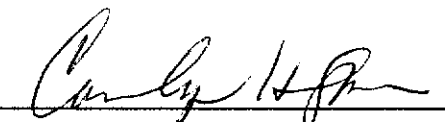
CAROLYN HOLMAN affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


CAROLYN HOLMAN

PLAINTIFF'S VERIFICATION

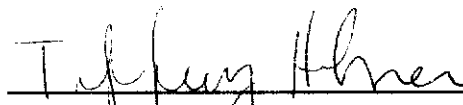
TIFFANY HOLMAN affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


TIFFANY HOLMAN